

25NWCV01044 25NWCV01044

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-07

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Case Number: 25NWCV01044 Hearing Date: August 7, 2026 Dept: C

NATIONAL COMMERCIAL

RECOVERY, INC. vs ROSE FRESH INTERNATIONAL, LLC, Case No. 25NWCV01044

In this breach of contract

lawsuit, Plaintiff National Commercial Recovery, Inc. alleges that its Assignor, Marquez Produce, Inc., entered into an oral agreement with Defendants to purchase 3,456 boxes of wholesale tomatoes from Defendants for a total price of \$60,261.55, paid in advance. After defendants were paid and the tomatoes delivered, it was discovered the tomatoes were in poor condition. Defendants agreed to refund \$40,580.91, but they have not paid as promised. Plaintiff moves for an order pursuant to CCP § 2033.280 deeming its requests for admissions admitted as to Defendants Rose Fresh International, LLC and Defendant Jose Monje. The motions are unopposed. On April 29, 2026, Plaintiff served upon Defendants Request for Admissions, Set One. (Besnyl Decl., ¶2.) On June 8, 2026, after the responses became overdue, Plaintiff mailed a demand letter to Defendants. (Id., ¶3.) As of the filing date of the motions, no responses had been received. (Id., ¶5.) Good cause having been shown, the motions are GRANTED. All objections are waived. Sanctions are imposed in the amount of \$720.00 upon Defendants and Defendants' counsel, jointly and severally, payable within 60 days. Moving party to give notice.